

The Occupation of Iraq and the Difficult Transition from Dictatorship

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Regime Change at the End of the War?

In spite of the great international mobilization for peace, and the subsequent failure to secure Security Council authorization or even a “moral” majority of council members, the United States launched and easily won its war against Iraq. It was an illegal aggressive war, an international crime against the peace.¹ Its supposed legitimacy was however linked to finding and destroying weapons of mass destruction and creating the framework for democratic regime change in Iraq.² As of the moment of writing (early May) the process of *post festum* justification along the first of these lines has not been going very well. Admittedly, it is surprising, given the reports and suspicions of the Blix team that there seem to be no weapons of mass destruction to be found by the Americans, who are capable of the most aggressive forms of interrogation of suspects. Thus the project of democratic “regime change,” already important not only for the Pentagon neo-conservatives, but also for the so-called reluctant hawks has become even more important to those seeking justification for what is otherwise unjustifiable: the outright violation of a provision of international law the United States did so much to establish at Nuremberg.

The idea of democratic regime change gained its salience in the late 1980s and early 1990s when, beyond all revolution and reform a new fundamental method for the radical change of political systems emerged as the key path of the transformation of East Central European countries. Along with anticipations in Spain and Latin America and a dramatic application in South Africa, what János Kis called “regime change” or “coordinated transition,” meaning centrally negotiated transformation coupled with legal continuity, was established as a dramatic, new path from dictatorship to constitutional democ-

racy. Kis was not only the main leader in Hungary of the democratic opposition, that was a key actor in one such "regime change," but was perhaps the most sophisticated theorist anywhere of the new model of change.³

Since the early 1990s the prestige of the transitions to new democracies has been tremendous. Countless books and dissertations have been written on the topic, and subtopics like civil society in the transitions, constitution making, retroactive justice, and the relationship of economic and political transitions. At the same time it became clear that there were whole regions of the world, and in particular the Islamic world, where the new democratic wave did not manage to get a secure foothold. These regions indeed became important breeding areas for new, aggressive anti-liberal democratic trends. It was in this context that the neo-conservative project of linking a benevolent imperialism with democratization was born. While intellectually shallow, this project found ready support among elements of the American right that found difficult to imagine an international order with the end of the Cold War where U.S. leadership was justified in terms of a crusade against an evil regime, and was based on military might and pre-eminence. After the events of September 11, 2001 it was possible to link the new ideology to a national strategy of establishing the security of the United States through preventive (misnamed as preemptive) acts of force against countries capable or inclined to sponsor attacks on the United States. Even as the conception was greatly expanded, its normative core remained that of democratization (occasionally linked to or replaced by human rights), and after the first of the anticipated preventive war how this model of justification fares remains a very important matter to all political actors concerned.

At present, a pseudo-democratic government relying on external force or a theocratic authoritarian regime or even the fragmentation of the now stateless country seem much more likely than representative government and the rule of law for a unified Iraq. Yet it is hard to gloat over the probable failure of the project of democratic regime change. As far as the long-suffering Iraqis are concerned, it would be immoral to celebrate the probable failure of accountable government and the rule of law. This outcome is however not inevitable, and the uncertainty puts staunch opponents of the war and all remnants of the peace movement in a difficult position as to their hopes, and

perhaps demands. If we see a narrow path of opportunity for democratic change in Iraq, should we point it out and even insist that it be taken seriously? Would we thereby be trying “to redeem the unredeemable” (Habermas in *Die Frankfurter Allgemeine*). Would even a minimally democratic outcome in Iraq retrospectively justify the American war, and provide ideology for the architects of empire to embark on similar ventures in the future? Should we not rather hope for the total defeat of the imperial project by whoever has the means, so that the neo-conservative ideologists in the Pentagon, the “wag the dog” strategists among the President’s men, and the reluctant hawks of all stripes be taught a much-needed lesson?

I admit some ambivalence on this fundamental question. But, it seems to me that it is always a good rule of thumb to avoid thinking that “the worse, the better.” In this case, “worse” could mean endless civil war and a humanitarian disaster for a country of 23 million people. Discrediting the aggressors, however satisfying, is less important than contributing in however small a way to the freedom for the Iraqis. That may be possible if significant political forces in the United States (including the Democratic party in an election year), the United Nations and Europe could be helped to see the issues of democratization in the now occupied country more clearly.

In fact there is a danger in trying to redeem the unredeemable. The kind of bad compromise Habermas seems to have been thinking of when he used this phrase is one in which the United Nations would somehow rescue the Americans, after the occupation of Iraq, by providing some kind of international legitimating cover for a unilateral enterprise of political imposition. While the United States government has already made clear that it does not desire any serious U.N. participation in the political transition, it does seem to want a transparent cover of this type, as long as it will not do too much to restore the prestige of the international organization. The U.N.’s role would be largely reduced to removing sanctions, and mere humanitarian assistance, and thus to participate in a humiliating side-show. The U.N. special coordinator for Iraq, the U.S., is willing to concede would have little more than unspecified informal influence on the occupation “Authority” and a projected Iraqi interim government.⁴ Thus, if genuine international, rather than U.S., supervision, monitoring and control of political negotiations are, as I believe, required for any kind of legitimate democratic bargain in Iraq,

this pre-condition can be achieved only by overcoming the intense resistance of American policy makers. They will be willing to consider an international alternative only if their own unilateral efforts are defeated. Such an alternative must be clearly articulated and available as soon as possible if it is to be relevant for the only force that can definitively defeat the current U.S. scenario, the radical Shi'ite clergy. Even if the project of external imposition were defeated, it would remain a great challenge to channel the developing Shi'a movement in a direction compatible with the representation and rights of all other groups in this explosively divided society.

Externally Imposed Revolution?

In order to understand the chances of democracy in radical political change, it is best to start with the transition path now in motion. The term "regime change" used by the U.S. administration and the press is in fact ambiguous. It may refer to any replacement of one regime by another, and thus to a variety of paths. In Hungary and elsewhere in the late 1980s and early 1990s, the term came to mean the specific path of negotiated transition as distinguished from both reform and revolution. In either case, it is important to note the significant differences among paths, their defining characteristics and likely consequences. In the most persuasive comparative analysis, that of Kis, reform is defined as continuity of both legitimate authority and legality, revolution as rupture in both dimensions, and *regime change* or *coordinated transition* as rupture of legitimacy but legal continuity.⁵ Legitimacy is understood here in the sociological sense of general or at least elite acceptance of the claims of the rulers to justify their rule, while legal continuity is understood, following Hans Kelsen, as the limitation of change to a form that relies on a regime's own rule of change. The four-part scheme of Kis can be expanded to eight, if we differentiate among externally induced and internally generated versions of each path. Evidently revolutions (as all over Eastern Europe in the late 1940s), but also internal reforms and self-coups can be and have been promoted, induced, and even forcefully imposed by outside powers, even if the degree of the external role is often open to question. While I am not aware of even a single case of negotiated transition in the context of legal continuity

having been externally produced, there seems to be no logical reason why this path too should not be possible.

Table 8.1 *Transition Paths* (Andrew Arato, after János Kis)

<i>Legitimacy</i>			
<i>x 2</i>	<i>Continuous</i>		<i>Rupture</i>
<i>External Legality</i>	<i>Continuous</i>	<i>Reform</i>	<i>Coordinated Transition</i>
<i>Internal</i>	<i>Rupture</i>	<i>Autogolpe</i>	<i>Revolution</i>

It is not hard to demonstrate today the superiority of coordinated transition as a path to democracy. Reforms always seek to preserve an original identity, and reiterated reforms leading to the end of a dictatorship take a very long time, as recently in Mexico. The “state strengthening” authoritarian consequences of revolutions are almost indisputable empirically, and Hannah Arendt’s masterly analysis remains the best treatment of the elective affinity between revolution and dictatorship, even if in *On Revolution* there is an entirely exceptional case that avoids this logic: the American Revolution. In the case of a self-coup, the chances of democracy would rest with the democratic intentions of an authoritarian force—an inevitably rare commodity. As against these paths, the late twentieth-century experience of negotiated transitions, from Spain to Poland, Hungary and South Africa has dramatically demonstrated the possibility of relatively rapid replacement of an authoritarian legal order by a democratic one within the framework of legal continuity.

Unfortunately however, as Linz and Stepan demonstrate, this path is available only where social forces capable of negotiation have emerged within the dictatorship. This is possible according to them in either authoritarian or post-totalitarian, but not totalitarian regimes.⁶ Others have rightly focused on a split within the ruling elite required for negotiated transitions, a precondition unlikely to be met within conditions of extreme and terroristic repression.⁷ In the case of totalitarian or near-totalitarian regimes there may very well be a

high likelihood that only defeat in war and “occupation by a democratic regime and externally monitored democratic installation” can lead to democracy.⁸

If there is a path to democracy in Iraq, its beginnings at least will lie in defeat in war, occupation and externally monitored installation. It should be noted right away that applied to Saddam’s Iraq the label of “totalitarianism” may have the role of justifying war, occupation and external installation, rather than explaining why these actions on the part of the United States were the only path from dictatorship. Given the nature of the Shi’ite mobilization, so soon after the end of the war, there should be some room to question an analysis such as that of K. Makiya’s *Republic of Fear*. Very high levels of brutality and repression moreover are possible in non-totalitarian as well as totalitarian dictatorships. I am not competent, however, to debate the issue of the exact nature of the Iraqi dictatorship. It is now moot to the extent that war and occupation have taken place, and the justification, right or wrong, that it was impossible to remove Saddam’s dictatorship any other way can no longer be tested against other possibilities. What is not at issue is that Iraq’s dictatorship has been smashed, entirely outside this regime’s own rule of change (if it had one), and that all this happened through the military intervention of an outside power. Thus, legally speaking we have a case of externally imposed revolution taking place in Iraq.⁹ Can it lead to some kind of democracy?

Our first impulse that external imposition would only make a revolutionary road to democracy, already nearly impossible, only more difficult, may be wrong. Linz and Stepan at least, with the German and Japanese cases in mind, seem to think that external imposition can accomplish a democratic transition (though not necessarily consolidation) where revolution is not likely to. While the empirical evidence based on two cases (whose relevance I will examine in detail) proves little, it could be nevertheless argued that external imposition has the advantage that an external occupier and monitor not only can remove forces of the old regime but could also block efforts of newly mobilized forces to impose a new non-democratic solution. External occupation may force such new movements and parties to work together and accept solutions that would not be their first preference, but which they can come to accept as “the only game in town.” Accordingly, if a Shi’ite revolution for example overthrew

Saddam (hypothetically), it would have been difficult to force victorious clerical leaders to accept any kind of power sharing and open competition with secular or Sunni elites. With the American occupation, no force would be in a position presumably where its militants would accept only the solutions their own side imposes.

At the same time, in the case of external imposition there would be problems with the legitimacy of a new, transitional order even graver than in the case of indigenous revolutions. The latter are best understood, following Arendt, as having two moments in time, liberation and revolutionary construction.¹⁰ Between the two, when the old law is dead and the new has not been created lies a political-legal vacuum that no revolutionary regime change can avoid. Thus what Carl Schmitt called *sovereign dictatorship*, implying the need for a provisional government that exercises arbitrary authority, without the constraints of the rule of law or the separation of powers is inevitable even in a democratic revolution until a new constitution is drafted, ratified and enacted. Sovereign dictatorship has a very high need for self-legitimation; in modern, democratic times it can be exercised only in the name of the people. But who are the Iraqi people? Although Bush, Blair and Rumsfeld habitually refer to such an entity, strictly speaking who the Iraqi people are cannot be legally defined before the institutionalization of a democratic process. For now there are only Kurds, Shi'ites, Sunni and others, both secular and religious, especially as the state that has held them together in some kind of Iraqi nationality has been smashed.

In indigenous revolutions, a part of the people that plays a heroic and self-sacrificing role in the work of liberation has at least a claim to represent the people and their interests, before they can express themselves through democratic channels. The reason why new elites in control of provisional governments, inevitable components of revolutionary transformations, can be accepted as legitimate for a relatively short period is because they have participated in the work of liberating the country from a (generally) hated old regime. In the case of the model of external imposition, however, it is almost impossible to distinguish liberation from occupation. After a lost war, unless a country is freed from an external occupier or its obvious puppets, the liberators will be occupiers to some and probably to most if they stay long enough to do any good, to really help stabilize and frame the political competition. Any interim government they

will sponsor, with no political credit of its own, will suffer from this legitimacy problem, and the inevitable role of such government in shaping more permanent arrangements will be the reason for extra-critical scrutiny and suspicion. The occupying power, the Americans, can claim that they will let the Iraqi people gain control over the process of democratization, but they must first identify who the people is and who are its plausible representatives. If any important group is excluded, it gains the mantle of representing large groups of the population against the occupiers and their appointees. Thus, they may find it easier to speak in the name of the people than those who represent most immediately the occupiers. This could happen in Iraq in the case of the most radical Shi'ite clerics as well as some segments of the old state administration. Even a high level of pluralism in the construction of a provisional government cannot solve the problem, because those who participate, if they have a mass bases like the Shi'a clerics may not be able to manage their relationship with their base, and more radical rivals in its leadership.

The issue of the administrative elite associated with the Baath is quite different, but equally serious. As Linz and Stepan notice [63] destroying the party in a one-party state where its fused with the administration, incapacitates the state, and opens it up to opportunistic, clientilistic but amateur groups who cannot solve problems of coordination and efficiency. This has already happened in Iraq, probably along with the great alienation of the Sunni middle and professional strata also tied up with the Baath and the state bureaucracy. The alternative however, namely restricting deBaathification to the top only, which the Americans have also tried, if selectively, is incompatible with the revolutionary ideology of both the returning exiles and the radical Shi'ite clergy that the Pentagon ideologists were unwise enough to give strong encouragement on this score.¹¹ Radically pursuing this strategy on the other hand will mean not only the continued disorganization of the state, but also the exclusion of the relatively secular Sunni statist and professional middle strata from politics. It may be that this road will help legitimate the imposed revolution in the eyes of the previously excluded, inevitably the majority. But it may have two disastrous consequences: a dramatic drop in the efficiency of an administration and services, and the long term exacerbation of Sunni-Shi'ite conflicts.

German and Japanese Comparisons

If the legitimization problems of an externally imposed revolution do not seem entirely insoluble, this may be because of the historical precedents of Germany and Japan, where they were handled in two significantly different ways. External imposition indeed could be seen as two very different things: imposing a full democratic solution from the outside, or merely removing impediments in the way of genuinely internal solutions. According to Carl J. Friedrich, the process of democratization of Germany, in reality the restoration of democracy, can be understood as the second of these types.¹² In the words of the best American historian of this process: "German political life reached 'point zero' in May 1945. But there were still latent political traditions of pre-Hitler Germany on which a reconstruction of the body politic could fall back. There were also scores of political and intellectual leaders and thousands of faithful followers who had somehow weathered the totalitarian storm and were rallying now to rebuild society and state."¹³

It may be therefore more fitting to choose the Japanese example as a lesson for Iraq, because here the work of imposition was much more drastic and democracy at least more obviously created than merely restored.¹⁴ Note however that in Japan, radical rupture was avoided to a far greater extent than in Germany. The Americans made a determined attempt not to smash the Japanese state in its internal capacity. The Japanese cabinet and Diet were not removed, but instead they now had to follow the directives of the American military, rather than their variously dominant military groupings as in the years 1930–1945.¹⁵ Most importantly, Gen. McArthur was strongly sympathetic to the Japanese government's desire to allow the emperor representing the unity of the state to remain in place. The retention of the emperor was key to maintaining the coherence and loyalty of the police and the bureaucracy. Finally, even in the midst of imposition, the important *fiction* of legal continuity was maintained.¹⁶ The new constitution of 1947 was formally passed as a mere amendment of the 1889 Meiji constitution.¹⁷

Thus the problem of legitimization in Germany was handled through the restoration of democracy through reliance of largely indigenous processes, whereas in Japan, where democratization was imposed, the solution relied on the preservation of the inherited state along

with a species of traditional legitimacy. This difference should not hide the fact that the initial conditions of political transformation in Japan and Germany in 1945 were far closer together than the givens of either could be in contemporary Iraq:

1. Germany and Japan were under an externally overthrown dictatorship for 12 and 15 years, respectively; Iraq for 40 years or more.
2. Germany and Japan were constitutional regimes before the 1930s; what occurred after 1945 was first and foremost a restoration of constitutional regimes. Iraq has never known constitutional, rule of law government. The skills, traditions, memories, and institutions and most of all the professionals to build a constitutional state were available in both Germany and Japan, but not in Iraq.
3. Germany and Japan are ethnically homogeneous. Japan is also religiously homogenous, while violent Catholic and Protestant conflicts were over in Germany in the 17th century. The ethnic and religious situation in Iraq is obviously different, to say the very least. Here the ascriptive cleavage structure is three-dimensional and highly antagonistic (Arab-Kurd; Shi'ite-Sunni; secular-religious, with 6 out of 8 of the possible groupings realized!)
4. German and Japanese elites and the Western, mainly American agents of democratization had a common enemy, whose support was relatively weak within their countries: the Soviet Union. Iraqi elites, in common with other Arab/Muslim leaders and opinion makers have a major enemy that is the friend of the United States: Israel.
5. Finally, the external boundaries of Japan were entirely secure, those of Germany could be threatened only by a new World War. The boundaries of Iraq on the other hand are porous, and are threatened by a plurality of states that have important internal allies. Iraqi democracy is a threat to all of these states, some of them allies of the U.S. and therefore difficult to restrain by threats of force.

Partition or Historic Compromise?

Evidently, democratization in Iraq has a much more unfavorable “zero point” [*Stunde Null*] than did revolutionary imposition in Germany or Japan. It will also be much more difficult to imitate the work of the generals Lucius Clay and Douglas McArthur, who in any case relied on whole staffs of leftist experts interested in what is now rejected by the Bush team as “nation-building,” namely the establishment of a new, state based framework of social solidarity and identification. Not interested in nation or state building, they nevertheless gave themselves a great deal to do in this area. Unlike their forerunners in Japan, the Americans in Iraq entirely smashed not only the Baath government but the existing state as well, putting its whole administration under severe threat. They did not, or could not seek out any institution like the Japanese emperor, government, Diet, police or administration that would contribute to the cohesion or the work of a state, namely keeping order and maintaining the established framework of everyday life within the territory. In Germany too, there was little or no institutional continuity of the central state, but there both the Americans and the British restored or created viable provincial (*Länder*) governments extremely early. Bavaria, for example, already had a prime minister in late May, a few weeks after the surrender.¹⁸ When the time for rebuilding central institutions came, that effort could rest on established provincial governments, administrations and, after the election of constituent assemblies, constitutions. None of this could have happened without the long standing patterns, practices as well as surviving staffs and leaders of effective local government.

While Iraq is in no way comparable to Germany with respect to such givens, there are nevertheless three places where the Americans could look for at least some analogous resources: the Kurds with their experience of a quasi-independent region, the lower and provincial levels of the Baath state administration and the Shi'a clerics who are now showing a surprising capacity to administer cities and villages, more effectively in fact than the occupiers. Unlike the German case, however, these forces of potential organization from the bottom up represent three separate and mutually antagonistic ethnic-religious groups. There are two imaginable ways of forcing them to co-operate: the quasi-partitioning of the Iraqi state among them, or

enabling them to enter into a difficult but not impossible historical compromise. The project of full autonomization may in fact resemble the German pattern, with three military powers the Americans, the British and the Poles(!) playing the central role. Right now there is loose talk in Washington of the United Kingdom holding Basra and the South, the Americans continuing to occupy Baghdad and the center, with a Polish led international force presumably "occupying," or "protecting" the North including Kurdish territories. Good luck to the latter when the Turkish Army comes across the border, as it certainly will if the project of partitioning Iraq is adopted.¹⁹

More seriously, it may be impossible to find an autonomy formula that will simultaneously satisfy the needs of the Kurds if the Iraqi state proves unviable, and the Turkish government and military command that will insist on having an important say in the matter.

While more difficult internally, enabling the three forces to negotiate the formation of a broad based provisional government, along with forms of reduced but still real local autonomy, and a constituent process based on consensus and compromise should have been more promising. Such a path would have grafted a negotiated or coordinated transition onto the externally imposed revolutionary model, doing only without a legal continuity that in any case would not be much missed in a society unused to the rule of law. The option would have had (or would have, if revived) four preconditions:

1. The first is negative: the U.S. would have to get out of the process of refereeing the negotiations after initiating them. There are several reasons for this. The occupation is unpopular to several major groups that would have to participate in a broad-based process. The presence of U.S. negotiators or even referees would be seen as a strong intervention in the process on behalf of unpopular outcomes: some kind of continuation of the occupation, special access to Iraqi oil, favorable outcomes to Israel etc. Moreover the U.S. has already shown too great a preference for external exiles, and in particular the INC of Chalabi and Makiya, and thus it could not count as a mere referee in an Iraqi process. In fact it has been made clear by very knowledgeable analysts like Brent Scowcroft²⁰ that the U.S. did not fight the war for democracy to hand over power to its enemies whose victory would have to be quite imaginable in an open competi-

tive election. Thus the democratic intentions of the U.S. would remain in doubt. The negotiating posture of the Bush government recently at the Security Council, where mere legitimation was sought for a determined outcome has certainly not escaped the attention of Iraqi actors. Thus, for a genuine negotiated process of transition to democracy supervision by the U.N., its Secretariat or another plausible international agency would be mandatory.

2. Since legal continuity is already broken, the establishment of the rule of law is even more important.²¹ This means first of all the avoidance of arbitrary acts (arrests, open ended interrogation, shootings, public humiliation, trials without due process etc.) by the occupation authorities themselves. This is a difficult task for an occupation regime that is formally a military dictatorship especially while there is still fighting—but important steps can be taken by establishing military and/or international courts with due process, forms of oversight as well as disciplining those responsible for obviously arbitrary acts. Given the problem of the Baath, a general amnesty would have to be declared for those who have no obvious criminal responsibility under international law. (This could be linked to a truth and reconciliation process.) For political actors to be able to participate in an uncertain, open-ended political trial of democracy their personal fate would have to be made secure. Elections leading to democratic stability can only be held if party workers, publicists and voters do not fear repression and retaliation. Granted, given the general availability of arms a non-violent political process is hard to imagine, but at least participants should not have to fear arrests, interrogations and kangaroo trials at the hands of the occupying authority or transitional government.
3. Political participation in the negotiations of all groups with sufficient following that accept democracy as a second best would have to be guaranteed. Attitude toward the United States or Iraqi exiles it sponsors, or even to the past, need not be decisive as long as parties publicly and convincingly indicate their strong willingness to desist from trying to impose a non-democratic outcome, and to accept the rules of the game that come out of negotiations.

4. Finally, there is a need to either involve representatives of key neighboring states (Turkey, Iran, Syria, Jordan and Saudi Arabia) in negotiating sessions dealing with the structure of the Iraqi state, or to organize a separate conference with their participation concerning this question which is of vital interest to them. Eventually, the Security Council of the U.N. would have to produce a binding agreement, with sanctions concerning the boundaries of Iraq and its components.

Different formulas could actualize or combine these four desiderata. But it is the principles involved that are important: internationalization, self-determination, legality and consensus. Moreover, it is pretty obvious that the United States could have only benefited from stepping aside and thereby sponsoring a process of internationally monitored negotiated transition. The principle goal of the invasion, now that there are apparently no WMDs is already being redefined as a united but democratic Iraq. The chances of failure in both these areas can be minimized as long as the consensus requirements for an agreement are not set too high. Equally important: all charges of imperial interests could have been refuted by adopting this model, and the U.N. could have been used to retroactively justify the military enterprise the Security Council did not approve.²² Granted, that latter act of co-optation would have a price that Russians and the French would exact, but that would have to be paid “only” by some interested U.S. companies who would contracts and profit opportunities. Thus it is difficult to justify or even explain why the U.S. is so against this type of model.

Evidently, however, part of the U.S. government has directed its strategic plans as much against the U.N. as Iraq itself. Otherwise it is hard to believe why a compromise proposal, variously offered by Chile, Mexico and Canada, was not adopted by the Americans (Blair’s government seemed to tempted) during the last weeks of the Security Council debate. Not only a “moral majority” (i.e., 9 or more votes) of the 15 member Council could have been thereby attained, but perhaps the French or Russian veto could have been avoided after all. It seems clear in retrospect that Security Council support would have meant, as in Afghanistan, the right to participate in the political transition of Iraq, and it is likely that the Pentagon wing of the U.S. government (that never wanted to go the U.N. in the first

place) was already thinking of avoiding that option. So the idea of U.N. supervision or even serious participation in the political transition cannot be permitted to surface now, and even Tony Blair had to be set right when he entertained some undetermined version of the idea.

But why not then forget my first precondition and sponsor a fully inclusive, autonomous, negotiated process under American supervision, one that could still perhaps work if they could get the radical Shi'ite clergy, as well as the Kurds to sit down with elements of the old state administration? The answer seems to be that they oppose such a process precisely because of its virtues. The U.S. government must fear just as much as Scowcroft that democracy could mean the election of forces hostile to the United States. But they cannot follow his suggestion that democracy be postponed indefinitely, now that the democratization of Iraq has become the only justification for the war, for the violation of international law and diplomatic break with important allies. What they therefore need and want is a democracy that turns out right, a contradiction in theory because democracy by definition implies uncertainty of outcomes,²³ but empirically possible to the extent the entire process, as well as the resulting constitutional-electoral regime can be managed.

This still leaves the question of rule of law, but the answer seems pretty obvious. The deBaathification that the exile groups continually speak about, that can only create legal uncertainty and turmoil for some time, has not only become part of the ideology of the American planners who thereby confirm themselves to the analogy of the Iraqi regime change to previous and successful transitions to democracy (deNazification in Germany, demilitarization in Japan and, supposedly but wrongly, deCommunization in East Central Europe²⁴), but it is also a carrot uniting the Shi'ite movement with its hatred for the Baath and its bevy of office seekers and ideologically-oriented exiles around Chalabi. To the extent that the Shia clerics cannot be allowed to rule Iraq, it may be thus possible to compensate them on lower levels of power and influence, or at least so the Americans and Chalabi's group must hope.

Confusion Reigns: Provisional Government and Constitution Making

Thus, revolutionary imposition will not be combined with, or its problems mitigated by, a consensual, rule of law-framed process of broad-based negotiations. The problem, however, remains that of devising a process that appears pluralistic without being excessively so, one that leads to sufficiently democratic elections without producing an outcome deemed unfavorable by U.S. policy makers. At present all we are witnessing is confusion and changing signals, that may mean serious conflicts between the U.S. and its closest Iraqi partners, between the State Department and the Pentagon, and among the Iraqi groups whose participation seems necessary in one or another formula for transitional arrangements.

First, there is the issue concerning type of state. The Kurds of course, who cannot rule Iraq as a whole want as little as possible of a rule of any central state over Kurdish territory: thus their aim is a confederation of three "states" or "regions" if independence is not possible. They are opposed not only by Turkey, but probably also Chalabi, whose secular Shi'ite associates could not gain control over any of three possible territorial entities, except perhaps the central Sunni-Arab region where they would have to forever rule by force of arms. The Americans oscillate between the two sides, depending on the day and on whoever happens to speak for the government on a given occasion.

Second, there is a question of who appoints the provisional or interim government. First, it seemed General Jay Garner would do so, then a meeting of the Iraqi opposition announced that a conference would be held in Baghdad to generate it, then Garner again announced that he would do so, and that probably five or six leaders of the external opposition and Kurds would be the members along with two or three others. Finally, (*NY Times*, May 5, 2003) opposition groups announced that first a "national assembly" of 350 "delegates" (1/3 exiles and Kurds, whose leaders would pick the other 2/3 from inside Iraq) would meet in late May, and it would be this body that would name either "an interim executive council or prime minister." At the same time Garner seems to be still speaking of picking an interim "nucleus" that "doesn't have to be perfect, all it has to be is representative" according to another American official. What seems

to be going on is that Americans are loath to leave outcomes to chance even if the cost would be illegitimacy (i.e., imperfection), while those within the Iraqi side who care more about legitimacy would like the outcome to be produced by some kind of process that can be represented as democratic (hence the preference for a “conference” or a “national assembly.”)

By the time this article appears, a provisional government, picked somehow or other is likely to be in place. Whether it lasts is another question. The original ambiguity will re-appear in relationship to the process that would produce a constitution. Secretary Rumsfeld who referred to this theme very early, seemed to imply that it would be entirely unproblematic for an interim government to produce a draft, that would be perhaps ratified in referendum. It is of course likely that the American government, or separately the State Department and the Pentagon already have drafts they wish to introduce, or perhaps impose. To any Iraqi however, with the aspiration for some significant support, the constituent process must preserve the appearance of independence and genuine participation. Thus, very quickly Chalabi countered with a more traditional constituent assembly formula. What remained unclear in his statement on this subject was whether such an assembly would be elected, and if so how, or a method of delegation by hand-picked instances would be used. Perhaps the national assembly that would pick the provisional government would also double as a constituent assembly, the classical revolutionary-democratic formula except for the fact that the members would not be democratically elected. Even if there were elections everything would depend on the electoral rules, the legal conditions of the campaign, access to the media, all of which could be arranged in such a way as to either exclude important actors or to minimize their chances. It thus may be possible to elect a bare pro-American majority who could, with suitable majoritarian decision rules shape the constitution. But again competitive elections or even large assemblies involve risks concerning outcomes, that a small hand-picked committee or single leader would not. The challenge is to minimize the risk, and yet maintain democratic appearances.

We can expect further confusion, ultimately a function of trying to square the circle: to have a democracy sufficiently democratic to justify the war, and to have that democracy produce a determined outcome, however that will be understood by American officials in

charge. If they could overcome their own internal disagreements the project would not be impossible, unless another actor emerges that is capable of challenging and convincingly denouncing it as undemocratic. Whether that has already happened with the appearance of Shi'ite mobilization is too early to tell. But not having constructed a viable process before that mobilization, the Americans may not be able to contain it whatever choices they now make.

Civil Society vs. Empire?

The absence of a democratic or even rule of law tradition may not be fatal for democratic transition if civil society organizations can prepare a society for participation and self-government during the period of dictatorship. Such organizations could make it possible for a constituent power to be based on organized society and not the quicksand of isolated individuals. (Arendt) It is a commonplace however that under totalitarian domination, forms of local autonomy, civil associations, publics, or even networks cannot develop. Accordingly, the revolutions that abolish such a dictatorship themselves have a propensity to turn dictatorial. In light of the recent Shi'ite mobilization, under which I understand not only demonstrations and cultic events, but also the impressive grass roots religious organization of communities like Najaf and Karbala and their infrastructure, one must come to one of two possible conclusions. Either the Saddam regime was only incompletely totalitarian or that under conditions of a perceived neo-colonial occupation a tradition like that of the Shi'a can be very quickly revived and reorganized even after extreme suppression. Probably both statements have some truth in them.

The idea was anticipated only by leaders of the Supreme Council of the Islamic Revolution who maintained before, during, and after the American invasion that Iraqis could free themselves from Saddam if they received the right kind of significant, but non-intrusive international support. That self-assessment may have been too optimistic as far as Saddam's regime is concerned, but may very well turn out to be more true for the occupation regime. In theory the Americans have much greater resources to crush an independent movement than even Saddam, but whereas the latter needed to obey no limits when repressing social independence, the Americans are

not in the same situation. Having fought a war supposedly for “Iraqi Freedom,” they are in poor position to suppress manifestations of that freedom. At the same time it is difficult for them to continue portraying the mere existence of an anti American movement as somehow proof of American success, justifying the occupation. They must be conscious of the fact that when there is no serious repression the dynamic of mobilization will bring an increasing number of increasingly politicized people into the process. The longer the occupation lasts moreover, and the longer projected timetables for withdrawal the more anti-American the movement is likely to become.

Aside from harsh and extensive repression that seems implausible, there are two strategies that can be used with respect to the Shi-ite movement: co-optation and fragmentation. The first would mean making a deal with a moderate clerical leadership, notably the leaders of the Supreme Council that are nominally members of the Iraqi National Congress led by Ahmad Chalabi, although they boycotted and demonstrated against some of the assemblies organized to promote the leading role of that organization. For a man like Ayatollah Muhammad Bakr al-Hakim, that prospect is dangerous now that mobilization is taking place, since if he, his brother and their associates gave their co-operation too readily or cheaply they could be challenged and replaced by more radical and more anti-American leaders like the young and charismatic Moqtadah al-Sadr, bearing the famous name of a martyred father.²⁵ It is hard to believe that in a seven-to-nine-person interim government, for example, Hakim could accept anything less than leadership—or a structure of decision making that would allow him to veto any decision. Unlike Chalabi, he has a serious militia (the Badr brigade) and large following not only in the south but potentially the capital, where at the moment al-Sadr is the main force in Sadr City. Unlike the Kurds, Hakim’s potential electorate could produce a majority. Thus co-opting this particular Shi’a leadership may not be possible unless the Americans are prepared to cede power to it, and experimenting with another moderate group like that of Ayatollah al-Sistani (who is reputed to have co-operated with the Baath regime) may not do any good, given the strength and organizational head start of the Supreme Council.

But let us assume I am wrong, and Hakim does join a provisional government as a member without veto rights and gets away with it

within the Shi'ite movement. Since he is well organized and supported, it would be in his interest to have an *elected* constituent assembly as early as possible. Weaker American supported elements, led by say a Chalabi or a Makiya or whoever would be interested in a *pre-arranged* constituent assembly and subsequent elections, as late as possible. But provisional governments can be justified only if they are really provisional, and that means relatively short term. With the U.N. in charge as in Afghanistan, it would have been easier to justify the longer period probably needed to prepare the conditions for genuinely free elections. Now that option seems to be gone. With the U.S. in command, and especially if American supported elements with little following in Iraq dominate, the tenure of any provisional government would have to be especially short. Whether in or out of such a government, unless he himself leads it, Hakim will be in an especially strong position therefore to denounce all delays of a free election, as well as the imposition of a constitution by an unelected body. And if he does not, al-Sadr may be quite ready to play the role of Lenin. Chalabi should recall Kerensky's fate (and Hakim those of the more radical social revolutionaries) before embarking upon any such path.

Fragmenting the Shi'ites may be in fact a better strategy from the American point of view, as this is already happening spontaneously. There seem to be divisions concerning the relationship of religion and politics, the model of a future Islamic republic, as well as the related issues of Iranian alliance, whether this should be pursued, and if so, which Iranian faction, the hardliners or the reformers, should be sought as allies. There may be disagreement too concerning the goal of fully controlling their part of Iraq, or somehow sharing in the control over the whole. In an ideal world from the point of view of Americans, one that the right electoral law could promote, the Shi'a could produce four or five competing religious parties. In a presidential election for example organized as a first past the post, one round contest these all could lose to an American and Kurd-supported Arab presidential candidate whose power could be suitably enhanced by the right constitution. It is some such solution the Americans must dream of if they are to have internationally monitored democratic elections at all. But the Shi'a too would have to be asleep at several, indeed, almost all stages of the process for this divide-and-conquer strategy to work.

Uniting against the occupation and their hand-picked interim government before, during, or even after a projected free election would guarantee that the Americans could not do the two things that they wish to combine: having free elections and guaranteeing the outcome they want and need. With the right strategy in other words, the Shi'ite clergy simply has too many potential voters to lose. Does that mean they can win? It depends on what they wish to accomplish.

The Shi'ite civil society in formation is by, its nature, anti-occupation. Assuming that the Americans really were only what they claim, namely selfless liberators who wish for no advantages for themselves in Iraq, they nevertheless represent by their very presence the humiliation of a society that could not free itself from an oppressive, minority-based dictatorship. But of course they are not perceived as selfless or disinterested or even particularly competent in the business of running an Islamic country. The anti-occupation movement is thus for self-determination but not necessarily or primarily in the name of any democracy. People are mobilized rather on behalf of their various understandings of the Islamic faith and/or the Iraqi nation, and democracy represents most likely a distant third goal, relevant at best to minority. Had they been drawn into a legitimate democratic process, under international supervision, many of the leaders could have become interested in democratization as a second best to their own domination, which the process did not allow. Now it is hard to imagine a scenario according to which the same thing can happen. Before the American occupation is defeated there may be mass confrontations and possibly civil war between a provisional government and the popular forces. None of that is a good school for democracy. If the American proxies win an inevitably temporary victory, there may be an ongoing low intensity, asymmetric struggle against them with the danger of drawing in other countries, above all Iran. It is hard to see how a new dictatorship can then be avoided, in this scenario of the Vietnamization of Iraq. But if the Americans are forced to withdraw and the Shi'ites win, they themselves may fall under the illusion of being able to control the whole country, since after all Saddam could do this with a narrower base in the population. That road will be another to dictatorship, of a different type, admittedly.

The historical compromise the Americans could have sponsored but did not remains the only plausible road from all types of dicta-

torship. Its parameters would still be the same in this society of explosive cleavages even if it is the anti-colonial movement that is in the driver's seat: international supervision, consensus and legal security. It will be possible only if the occupying power is forced to abandon the project of an imposed revolution. But it will depend on the internal development of the anti-occupation movement, and the advice and alliances that support it from the outside whether the end of the occupation is a road to new dictatorships, coups and civil wars or to a process of historical understanding and at least partial democratization and rule of law. We on the outside should not raise the standards for a positive process too high. Given its external connections, the Shi'ite movement is not likely to identify with a social model too different than that of at least one of the important factions of the Islamic Republic in Iran. An Islamic republic based on popular sovereignty, legal equality and local autonomy, rather than religious guardianship and the suppression of women and minorities may be the best that can come out of the Saddam dictatorship, its violent end in an illegal war and an occupation regime that chose the option of an imposed revolution.

Notes

- 1 Nehal Bhuta, "A Global State of Exception? The United States and World Order," forthcoming in *Constellations* (September 2003).
- 2 Anne-Marie Slaughter, "Good Reasons for Going Around the U.N.," *NY Times* (March 18). Her argument is normative-theoretically fallacious in my view, since even given the open and processual nature of international law, the outright illegal cannot be simply dubbed legitimate, unless a de-ontological principle of legitimacy like international public opinion, or the moral majority (the 9 members of the Security Council) supported an action that was stopped by a veto or veto threat alone, as in the Kosovo case she cites. Moreover, the illegal but legitimate should be able to become a principle of a new and better legality, and it is hard to see how the actions of the U.S. vis à vis the Security Council and the U.N. Charter could yield that. According to Slaughter, if weapons of mass destruction were found, and/or the Iraqi people welcomed the Americans and their allies, and if the U.S. turns "immediately back to the U.N." for after the fact approval and to help rebuild Iraq, and the U.N. agreed, the invasion would become legitimate. It is hard to think that she is speaking as a lawyer, and not as a sociologist to whom legitimacy is only belief in a claim of validation or justification. Even then her first two conditions have not been satisfied: WMDs have not been found, the Iraqis on the whole did not welcome the invaders. As far as the most "important" point is concerned, the U.S.

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has now indeed gone back to the U.N. for approval, and for help in rebuilding Iraq, though the concessions in the political area (appointing a special U.N. coordinator with no specified powers) are more symbolic than real. For legitimacy in the sociological sense it is hard to believe that a Security Council resolution giving the Americans free hand in the political sphere which they in any case have will make much difference. On the other hand, it would be hard to deny that success in building a democratic Iraq, which is now central to the self-justification effort of the American government, would help to justify the invasion and occupation for a great many who are otherwise skeptical.

- 3 János Kis, "Between Reform and Revolution: Three Hypotheses about the nature of Regime Change," *Constellations* Vol. I No. 3 (January 1995), and "Between Reform and Revolution," *East European Politics and Society* (Spring 1998).
- 4 See *NY Times* (May 9, 2003) on the draft resolution introduced by the U.S., the UK and Spain. It is to be very much hoped that this resolution, quite humiliating to the countries (France, Germany and Russia) that sought significant U.N. participation in the political transition, is defeated or vetoed, but the *Times* report suggests that it will pass.
- 5 János Kis, "Between Reform and Revolution: Three Hypotheses about the nature of Regime Change" and "Between Reform and Revolution." I expanded the scheme by identifying continuity of legitimacy cum legal rupture as *autogolpe*, i.e. coup or revolution carried out by a legitimate authority in place.
- 6 J. Linz and A. Stepan, *Problems of Democratic Transition and Consolidation* (Baltimore, 1996), pp. 55ff.
- 7 A. Przeworski *Democracy and the Market* (Cambridge: Cambridge University Press, 1991) pp. 56–57.
- 8 Linz and Stepan op.cit. pp. 57, 73. The Romanian case however shows that revolutionary change under some circumstances can lead to a polyarchy.
- 9 A similar category, artificial revolution, was introduced by some analysts dealing with post-war Germany and Japan. See: J. D. Montgomery, *Forced to Be Free. The Artificial Revolution in Germany and Japan* (Chicago, 1957). See especially the introduction.
- 10 H. Arendt, *On Revolution* (New York: Viking Press, 1965).
- 11 In fact, deBaathification seems to be more strongly represented at the Pentagon and in Washington, than at the State Department and among American officials in Baghdad faced with the immediate consequences of state disintegration. The result is however confusion and conflict. A clear and openly stated policy would have helped, but now mixed signals have been given to Iraqi actors who have already began to battle over important positions.
- 12 C. J. Friedrich, "Military Government and Democratization," in C. J. Friedrich and associates *American Experiences in Military Government in World War II* (New York: Rinehart, 1948), pp. 11–15.
- 13 P. Merkl, *The Origin of the West German Republic* (New York: Oxford University Press, 1963), p. 20.
- 14 See especially K. Takayanagi, "Some Reminiscences of Japan's Commission of the Constitution," in D. F. Henderson, ed., *The Constitution of Japan. Its First Twenty Years, 1947–1967* (Seattle: University of Washington Press, 1968). Dr. Ta-

- kayanagi, an important participant with a “collaborative theory” nevertheless writes: “All legislation for the democratization of Japan during the occupation was guided and supervised by the SCAP [Supreme Commander for the Allied Powers]. No legislation was enacted by the ‘free will of the Japanese’ in the sense that the enactment was accomplished ‘without any outside interference’.” (p. 77) Other interpreters believe the level of compulsion used was much more drastic, and few apparently share Takayanagi’s judgement that the new constitution was “a rather moderate revision of the Meiji constitution on democratic lines.” Even a cursory reading of the two texts as well Takayanagi’s own comparison refutes this claim.
- 15 On this see W. G. Beasley, *The Rise of Modern Japan* (New York: St. Martin’s Press, 1990), pp. 177ff.; Karel van Wolferen *The Enigma of Japanese Power* (New York: Alfred A. Knopf, 1989), pp. 39–41.
 - 16 On such fictions, see A. Arato *Civil Society, Constitution and Legitimacy* (Lanham, MD: Rowman and Littlefield, 2000), pp. 143–145; 174–175.
 - 17 J. Maki, “The Japanese Constitutional Style,” in *The Constitution of Japan. Its First Twenty Years* pp. 8–10; Takayanagi *op. cit.* p. 79; as well as A. Bouterse *et.al.*, “American Military Government Experience in Japan,” in *American Experiences in Military Government* pp. 350–351.
 - 18 Friedrich, “Organizational Evolution in Germany, 1945–1947,” in *American Experiences* pp. 205–209; Merkl, *op. cit.* pp. 8–14 and elsewhere.
 - 19 These men of the new Europe will need Jan Sobieski or his ghost to protect them! But as against the siege of Vienna, at least there are no Hungarians among them, because after allowing the training of Chalabi’s *Freikorps* at Tászár, that country had enough of direct involvement in Iraqi regime change.
 - 20 W. Gibbs, “Scowcroft Urges Wider Role for the U.N. in Postwar Iraq,” *NY Times* (April 9 2003).
 - 21 Friedrich, “Military Government and Democratization,” pp. 8–11; United State Institute of Peace, Special Report No. 104 “Establishing the Rule of Law in Iraq” (April 2003).
 - 22 It may be that such paper-thin justification will be now provided anyway by passing a new Security Council resolution sponsored by the U.S. and its allies. This type of resolution is certainly what Habermas feared, but it is hard to believe that it is the “legitimacy” Anne-Marie Slaughter hoped for.
 - 23 Przeworski, *op. cit.* pp. 10ff.
 - 24 The failure of deCommunization (that I in any case opposed) is indicated by the fact that the Polish government of the high former apparatus members President Kwasniewski and Prime Minister Miller may be asked to play a major role in policing post-war Iraq.
 - 25 See Peter Maass, “Back-Room Theocrat,” *NY Times Magazine* (May 12, 2003).